

Controlling investigation through collaboration: an empirical study of China's new prosecutor–police interaction mechanism

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Abstract

Effective coordination between prosecutors and police is essential for ensuring both investigative quality and procedural legitimacy. In 2021, China established a new institutional mechanism called the Investigation Supervision and Collaboration (ISC) Office to enhance prosecutor–police interaction by stationing prosecutors within police departments. This study examines whether these joint offices successfully strengthen prosecutorial oversight of police investigations. Drawing on surveys of 127 police officers and 48 prosecutors, 10 stakeholder interviews, and analysis of national and local regulations, we find that ISC offices represent a meaningful departure from earlier prosecutor-only liaison arrangements by incorporating police participation and emphasizing bidirectional collaboration. While official supervision metrics improved following the reform, practical challenges, including heavy caseloads and police resistance to external oversight, constrain effectiveness. In some regions, ISC offices have expanded into case-handling functions that risk blurring the constitutional boundary between investigation and prosecution. Although our findings derive primarily from developed eastern provinces and may not fully generalize to all regions, they reveal structural tensions in China's ongoing efforts to balance prosecutorial control with police autonomy, offering insights relevant to comparative discussions on optimizing prosecutor–police relations in criminal justice systems worldwide.

Introduction

The construction of interactive mechanisms between prosecutors and police holds paramount significance for achieving prosecution objectives and safeguarding judicial justice (Richman 2021). At the institutional level, prosecutors and police are often viewed as components of a unified prosecutorial system. Irrespective of whether jurisdictions adopt integrated or separated institutional models,¹ investigative and prosecutorial functions remain inherently interconnected, with this interaction forming a fundamental characteristic of prosecutor–police relations. However, meeting the diverse needs of

both prosecutors and police while ensuring smooth interactions requires implementing specific institutional arrangements and operational protocols.

To address these challenges, different jurisdictions have developed distinct models of prosecutor–police interaction. In the USA, scholars typically distinguish vertical from horizontal prosecution (Spohn 2021). Vertical approaches assign a single prosecutor (often within a specialized unit) to work with police from the inception of a case, while horizontal approaches rely on police-led investigations that are later handed off to prosecutors for charging and disposition. Vertical models are commonly employed for complex and high-stakes offenses such as sexual assault, domestic violence, and gang-related crime. Despite limited rigorous evidence, US policy writing has increasingly advocated for vertical models for their perceived advantages in coordinating investigative strategy, arrest timing, and evidence collection in these complex cases (Hogan 2023).

¹The integrated model typically features prosecutorial supervision and direction of police investigations (as seen in France) (Hodgson 2010), while the separated model maintains distinct institutional boundaries between investigative and prosecutorial authorities (as exemplified by the United States) (Tomberlin 2018).

England and Wales exemplify a deliberately separated model within the common law tradition. Since its establishment in 1986, the Crown Prosecution Service (CPS) was designed to ensure prosecutors' independence from the police (Lewis 2012). Under this model, police conduct investigations independently and then refer cases to the CPS for charging decisions and prosecution, with CPS lawyers notably refraining from directing police inquiries during investigations. This arrangement preserves impartiality but limits prosecutors' input into evidence-gathering. Despite this traditional separation, recent initiatives like the Domestic Abuse Joint Justice Plan launched by the CPS and National Police Chiefs' Council demonstrate attempts to systematize earlier, closer collaboration in specific case types. These developments suggest that institutional separation can cautiously coexist with targeted collaborative initiatives while maintaining prosecutorial independence.

In contrast to these common law approaches, civil law jurisdictions embed more formal prosecutorial authority within the investigative process. In Germany, the public prosecution office directs investigations and must pursue both inculpatory and exculpatory facts, coordinating investigative activities undertaken by the police (Boyne 2014). Similarly, in France, prosecutors strengthen collaboration through regular meetings with police and station visits, while exercising judicial oversight over police custody in obtaining suspects' statements (Hodgson 2005). This continental European approach to certain extent mirrors the vertical prosecution model's collaboration in the USA, both aiming for thorough and efficient fact-finding at the cost of some prosecutorial independence.

In China, both the Constitution and the Criminal Procedure Law establish the fundamental principle of 'division of responsibilities, mutual cooperation, and mutual restraint' between prosecutors and police. During the pretrial stage, to ensure the smooth realization of prosecutorial objectives, prosecutors and police bear respective responsibilities for investigation and prosecution, and should mutually cooperate in their work while exercising certain restraint and supervision over each other (Lin and Wu 2022). While prosecutor-police cooperation contributes to crime control, China's prosecutor-police relations are characterized by excessive cooperation and insufficient restraint, increasing the risk of wrongful convictions from inadequately supervised investigative practices (Mou 2017).

To address this practical problem, Chinese prosecutors and police have been exploring concrete collaborative mechanisms aimed at establishing more rational prosecutor-police interactive relations.² The objective is to fully utilize police investigative expertise while ensuring prosecutorial control over

investigative activities. At the same time, these mechanisms must comply with the constitutional requirement of 'division of responsibilities and mutual restraint', which prohibits prosecutors and police from merging into a single institution.

Most recently, the Supreme People's Procuratorate (hereinafter the 'SPP') and Ministry of Public Security (hereinafter the 'MPS') jointly issued the 'Opinions on Improving and Perfecting the Mechanisms for Investigative Supervision and Cooperation' in 2021 (hereinafter 'the Opinions'), requiring the establishment of investigative supervision and cooperation (hereinafter 'ISC') offices. The Opinions outlines 14 specific tasks for enhancing supervisory restraint, cooperation, and information-sharing mechanisms. These ISC offices serve as joint institutional bodies responsible for implementing investigative supervision and collaborative work.

The primary objectives of the Opinions are to provide necessary policy support and safeguards for police to conduct investigations lawfully and efficiently, while enabling prosecutors to comprehensively fulfill their supervisory responsibilities. Specifically, the Opinions require that police may request prosecutors to review evidence and provide recommendations on case characterization, evidence collection, and legal application in major and complex cases. It also mandates joint prosecutor-police discussions on evidence standards and criminal policy for similar case types. This framework emphasizes early prosecutorial involvement to enhance case quality and efficiency, with closer coordination through timely communication to identify and resolve investigative issues collaboratively. However, theoretically, such intensive early collaboration may compromise prosecutors' ability to provide genuinely fresh perspectives at later stages.³

Regarding the specific functions of ISC offices, the Opinions remain relatively ambiguous, merely requiring them to undertake 'related work' in investigative supervision and cooperation. This work is further categorized into four areas: organizational coordination, supervision and collaboration, implementation oversight, and consultative guidance. However, it fails to clarify the standards for what constitutes 'related' work or the permissible extent of ISC office intervention in specific cases.

This ambiguity reflects broader uncertainties surrounding the ISC mechanism, as initial research on this reform remains in its nascent stage with many fundamental questions unresolved. For example, Lin (2023) highlights structural deficiencies including unclear role definitions between supervision and collaboration functions, insufficient resource allocation, and misaligned institutional assessment criteria. These structural problems manifest operationally as formalistic supervision practices and imbalanced collaborative relationships. Yuan and Wang (2024) complement this analysis by examining the reform's outcomes, noting that while it has generated new

²Rational collaboration, in theory, requires prosecutors to maintain an objective and neutral stance in case handling, effectively supervise and guide investigative activities, ascertain case facts, and ensure procedural legality. However, in practice, these requirements necessitate closer prosecutor-police cooperation, which inevitably compromises prosecutors' ability to bring fresh perspectives at later stages. Our empirical study of ISC office reform examines whether these theoretical objectives of 'rational' collaboration can actually be achieved given these practical tensions.

³Some studies suggest that early prosecutorial involvement in investigations may lead to 'tunnel vision', that is, the formation of initial beliefs or suspicions that become entrenched, causing prosecutors to interpret or even distort all subsequent information to confirm these beliefs. This creates a snowball effect where one piece of initially flawed evidence accumulates into seemingly overwhelming evidence at trial, ultimately resulting in wrongful convictions (Bandes 2006; Findley and Scott 2006).

collaborative models, fundamental coordination problems persist at both institutional and procedural levels. However, current research remains fragmented and lacks comprehensive empirical investigation. This scholarly gap impedes systematic analysis of the mechanism's practical challenges and prevents the development of evidence-based reform proposals.

Our study examines the actual effectiveness of the ISC reform in improving prosecutor–police relations and achieving prosecutorial control over investigations. The analysis draws on survey data from 48 prosecutors and 127 police officers, field research on the actual operation of ISC offices in selected regions, interviews with prosecutors and police officers, and numerous relevant internal and public documents.

The subsequent sections of this article are organized as follows: Overview of prosecutor–police interactive mechanism in China section traces the historical development and reform process of prosecutor–police interactive mechanisms. Data and methods section outlines the data collection methods employed. Based on surveys and in-depth interviews with prosecutors and police officers, Empirical examination of ISC operational models section examines their perspectives on the similarities and differences between the ISC mechanism and previous prosecutor–police interactive models, while analyzing the practical operational characteristics of ISC offices in selected regions. Further discussion: can ISC offices enhance investigative control effectiveness? section analyzes the actual role of ISC offices in enhancing investigative effectiveness and legality based on empirical research findings. Conclusion section summarizes and analyzes the improvement and future direction of prosecutor–police relations in China.

Overview of prosecutor–police interactive mechanism in China

Earlier models of prosecutor–police interaction: embedded prosecutorial offices

Ongoing criminal justice reforms in China also demand closer prosecutor–police coordination. For example, the trial-centered criminal procedure system reform requires that investigations and prosecutions be conducted with courtroom standards in mind, ensuring that trials play the decisive role in determining facts and applying law (He 2023). This reform imposes higher evidentiary standards on both prosecutors and police, creating a greater need for prosecutors to provide guidance and oversight during investigations. In practice, this means prosecutors must intervene earlier in investigations to guide police work and ensure that investigative activities meet both legal requirements and evidentiary standards for successful prosecution (Wu and Lin 2024).

To ensure the effectiveness and legality of prosecutions, prosecutors need to guide and supervise police handling of criminal cases. However, sequential case processing compromises the timeliness of prosecutorial guidance and oversight. First, except for arrest approval procedures, police independently decide on case filing, investigation methods, and other coercive measures without direct prosecutorial intervention. Second, criminal cases are investigated entirely within police departments. When cases require arrest approval or prosecution review, they must be examined by police legal affairs

departments, then transferred to prosecutorial case management departments, and finally assigned to handling prosecutors. If procuratorates continue to wait for case file transfers before conducting reviews, they cannot identify potential problems in a timely manner during investigations. This sequential case processing model is considered fundamentally flawed, as it grants excessive investigative power while reducing subsequent prosecution review and trial stages to mere appendages of the investigation process (Li 2024). To address these structural problems and meet the demands of ongoing criminal justice reforms, procuratorates began exploring new mechanisms to fully realize their guidance and supervision functions.

The first approach was establishing embedded prosecutorial offices within police departments. These offices, typically located within police legal affairs departments or law enforcement case management centers, served as outreach institutions extending prosecutorial functions. Procuratorates led these reform efforts, beginning with pilots in Shanxi Province and other regions in 2015. The 2016 establishment of Beijing Haidian District's embedded office marked the first nationwide model, subsequently expanding across China (*First Prosecutorial Office Established at Police Law Enforcement Case Management Center* 2016). However, embedded prosecutorial offices yielded disappointing results in practice. National data from 2010 to 2021 reveal that supervision adoption rates for case filing, withdrawal, and illegal conduct correction showed no improvement and even declined after establishing embedded prosecutorial offices (Lin 2023).

Regarding the specific operational models of embedded prosecutorial offices, previous research indicates that prosecutors tend to intervene in investigations through substantive participation in individual case processing, though the specific intervention methods vary (Zhou 2020). One approach primarily focuses on the substantive aspects of cases, adopting a 'prosecution-guided evidence collection' method for complex cases (mainly providing opinions and suggestions), forming an internal participatory model. Another approach emphasizes the legality of investigative activities, forming an external supervisory model based on investigative supervision functions.

Comparatively, police find the internal participatory model more acceptable, though they also worry that excessive intervention may compromise investigative independence. The external supervisory model faces even greater resistance, with police in practice showing opposition to investigative supervision activities. Some provincial police departments have even issued directives requiring subordinate units to suspend the establishment of embedded prosecutorial offices in local police stations, citing concerns about reduced investigative efficiency, potential leaks of operational secrets, and unclear delineation of authority and responsibility. Additionally, embedded prosecutorial offices in some regions have handled simple criminal cases to further improve judicial efficiency.

Current model of prosecutor–police interaction: ISC offices

The Opinions from the SPP and MPS in 2021 requires the establishment of a new prosecutor–police interaction model. Based on the specific provisions in the Opinions, this

represents a comprehensive joint prosecutor–police project encompassing supervisory restraint mechanisms, collaborative mechanisms, and information-sharing mechanisms.

Under the supervisory restraint mechanism, the Opinions require prosecutors to conduct investigative supervision work lawfully and standardly, while police should lawfully implement restraints on investigative supervision. Second, prosecutors and police should jointly enhance investigative supervision effectiveness through timely communication, opinion consultation, and mutual cooperation during supervision processes. Finally, prosecutorial investigative supervision should coordinate with police enforcement supervision to jointly address prominent problems in prosecutor–police case handling and supervision work.

The collaborative mechanism focuses on establishing consultation mechanisms for major complex cases, emphasizing bidirectional prosecutor–police collaboration obligations. Police obligations include comprehensively presenting case circumstances, providing relevant documents and evidence materials, timely reporting case investigation progress, and cooperating with reviews. Procuratorate obligations include assigning experienced prosecutors and requiring that their guidance and recommendations be targeted, clearly articulated, and practically implementable. Additionally, mechanisms such as joint supervision, case-handling coordination, unified criminal case coordination, and operational assessment reporting similarly require bidirectional prosecutor–police collaboration rather than unidirectional cooperation.

The SPP and MPS simultaneously required lower-level procuratorates' prosecution departments and police legal affairs departments to jointly establish ISC offices as important platforms for implementing ISC mechanisms. Both ISC offices and embedded prosecutorial offices require prosecutorial personnel deployment and office locations within police law enforcement case management centers or legal affairs departments, demonstrating clear structural similarities. However, the transition from embedded prosecutorial offices to ISC offices represents a fundamental shift from internal prosecutorial reform to prosecutor–police collaborative reform. Unlike embedded prosecutorial offices that emphasized extending prosecutorial guidance and supervision functions, ISC offices are joint platforms staffed by both prosecutors and police that

enable bidirectional coordination through assistance requests, feedback provision, and information sharing to improve case-handling quality and legal compliance.

Comparison of the two interaction models

While both models aim to enhance coordination, they differ significantly in their structural design and operational mechanisms. Analysis of reform policy documents reveals several key differences between these two models as institutional forms of prosecutor–police interaction (see Table 1).

The comparison reveals three primary advantages of ISC offices over embedded prosecutorial offices. First, in terms of organizational structure, ISC offices function as joint prosecutor–police platforms with mixed staffing, making them more acceptable to police than embedded prosecutorial offices that exclusively serve prosecutorial needs. Second, their operational scope is broader. While embedded prosecutorial offices primarily expand prosecutorial guidance or supervisory capacity over investigations, ISC offices additionally address various police collaborative needs, including responding to requests for explanations, reconsideration petitions, review applications, and case re-examinations. Third, their deployment model differs significantly. Embedded prosecutorial offices involve temporary prosecutor assignments triggered by specific complex cases, whereas ISC offices maintain permanently stationed prosecutors to address daily collaborative needs, ensuring continuous rather than episodic engagement.

Although the Opinions clearly distinguish ISC offices from embedded prosecutorial offices in institutional nature and functional positioning, their practical effectiveness remains uncertain. Key questions include what operational mechanisms ISC offices actually employ in practice, whether they can resolve previous problems such as weakened investigative supervision, and whether they can construct better prosecutor–police relationships ensuring investigative activity legality and effectiveness. These issues require further empirical exploration.

Data and methods

To better understand the role and impact of the ISC mechanism, we examined police and prosecutor perspectives on the

Table 1 Comparison of embedded prosecutorial offices and ISC offices.

Dimension	Embedded prosecutorial offices	ISC offices
Personnel composition	Dispatched by procuratorate	Mixed prosecutor–police staffing
Basic functions	Guide or supervise investigations	Liaison functions including coordination, oversight, and guidance
Individual case supervision	Varies by region	Do not handle specific cases
Triggering mechanism	Complex case requests or proactive supervision of individual cases	Serves routine prosecutor–police collaborative needs
Feedback format	Provides legal opinions on investigative activities or corrects violations	No direct intervention in specific investigative activities
Expected outcomes	Expand prosecutorial guidance or supervisory capacity over investigations	Strengthen prosecutor–police case coordination and eliminate disagreements

new prosecutor–police interaction mechanism and the practical operation of ISC offices in selected regions using mixed empirical research methods combining surveys and interviews.

Our survey data draw from 48 frontline prosecutors and 127 frontline police officers. The prosecutors are from K City, a developed municipality in East China. Among the 48 respondents, 43 have worked in procuratorates for more than 3 years and are well-informed about prosecutor–police interaction mechanism reforms. The 127 police officers are primarily from J Province, a developed province in East China. Among these respondents, 107 work at grassroots-level agencies and are familiar with the most widespread grassroots prosecutor–police interactions. We collected police and prosecutor perspectives on relevant issues through online questionnaire distribution.

A second set of empirical data comes from in-depth interviews with 10 prosecutors and police officers from T District in K City, P City in J Province, W County in Z Province, and S County in R Province (all in East China). These locations prioritize ISC mechanisms, frequently organizing theoretical and practical experts to discuss mechanism construction and improvement. We selected these three locations partly due to data accessibility, as one author maintains good relationships with many prosecutors and police officers in these areas.

We also collected numerous relevant internal and public documents. These include internal regulations such as the ‘Management Regulations for Investigative Supervision and Cooperation Offices (Trial)’ established by procuratorates and police departments in T District, and the ‘Work Guidelines for Improving Investigative Supervision and Cooperation Mechanisms’ from W District, P City, J Province, as shown in the [Supplementary Appendix](#). Publicly available documents include local normative documents such as the ‘Implementation Measures for Improving Investigative Supervision and Cooperation Mechanisms between Beijing Municipal Procuratorate and Beijing Municipal Police Bureau’.

Our research approach involved both collecting local reform normative documents as extensively as possible and conducting surveys and field research to obtain insights into local reform implementation. However, we acknowledge the methodological limitations of our study, particularly that findings may not be generalizable to regions with different geographical and institutional contexts.

Empirical examination of ISC operational models

Prosecutor and police perspectives on reform innovation

A primary research question is whether the ISC mechanism simply represents a continuation of the previous embedded prosecutorial system. Survey results reveal that both prosecutors and police perceive meaningful changes, though with notable differences in enthusiasm. Among police officers, 39.37 per cent perceive significant or very significant differences between the two mechanisms, 49.61 per cent see moderate differences, and only 11.02 per cent perceive small or very small differences (see [Table 2](#)). Prosecutors show slightly stronger recognition of change, with 45.83 per cent viewing

Table 2 Police perspectives on differences between ISC mechanism and previous embedded prosecution system.

Response	Number	Percentage (%)
Very significant differences	7	5.51
Significant differences	43	33.86
Moderate differences	63	49.61
Small differences	11	8.66
Very small differences	3	2.36

N = 127.

Table 3 Prosecutor perspectives on differences between ISC mechanism and previous embedded prosecution system.

Response	Number	Percentage (%)
Very significant differences	7	14.58
Significant differences	15	31.25
Moderate differences	21	43.75
Small differences	3	6.25
Very small differences	2	4.17

N = 48.

the differences as significant or very significant, 43.75 per cent as moderate, and merely 10.42 per cent as small or very small (see [Table 3](#)).

The concentration of responses around ‘moderate’ to ‘significant’ differences in both groups suggests that practitioners generally recognize the ISC mechanism as a substantive departure from the previous embedded system rather than mere rebranding. The marginally higher enthusiasm among prosecutors (45.83 per cent vs 39.37 per cent viewing differences as significant) likely reflects their enhanced role in the new collaborative framework.

Regarding the effectiveness of the mechanism, survey results show that 66 police officers (51.97 per cent) consider the ISC mechanism relatively helpful to police work, while 31 (24.41 per cent) find it very helpful. Among prosecutors, a combined 72.91 per cent consider the mechanism relatively or very helpful to prosecutorial work.

What accounts for such significant variation in perspectives among both police officers and prosecutors? This represents a complex issue. Possible reasons include different local interpretations and implementations of the Opinions, leading to substantial regional variations. Some localities adopted models distinct from embedded prosecution, while others may have primarily drawn from embedded prosecution experience.

Through field research and analysis of published local normative measures, we found that local practices of ISC mechanisms adopt measures similar to previous embedded prosecution in some aspects, potentially affecting police and prosecutor perceptions of their differences. For example, in some areas of P City, procuratorates deploy multiple prosecutors to ISC offices for rapid processing of minor cases such as

dangerous driving. However, this practice predates the reform, as embedded prosecutors in some areas of P City previously handled similar criminal case processing. Therefore, ISC offices may inherit some practices from previous embedded prosecutorial offices in local implementation.

Some regions no longer establish separate ISC offices, instead requiring ISC work to be conducted through previously established embedded prosecutorial offices. For example, the 'Implementation Measures for Improving Investigative Supervision and Cooperation Mechanisms' jointly issued by Beijing Municipal Procuratorate and Beijing Municipal Police Bureau requires district procuratorates and police sub-bureaus to conduct ISC work through embedded prosecutorial offices. Under this arrangement, district procuratorates assign resident prosecutors while district police legal affairs departments designate personnel to work jointly, eliminating the need for separate ISC offices.

Therefore, reform measures implemented in some localities prompt further consideration: at the operational level, what specific measures do ISC offices actually employ? Can they effectively enhance prosecutor–police interaction quality and thereby achieve prosecutorial control of investigations?

ISC operational model one: 'liaison officer' approach

Through our research, we found that ISC offices in practice operate under a 'liaison officer' model, where procuratorates and police organs designate specific prosecutors and police officers to handle communication and coordination work including conveying collaborative needs, providing information feedback, and organizing meetings.

For example, in 2024, T District Procuratorate and Police Sub-bureau signed the 'Operational Management Regulations for Investigative Supervision and Cooperation Offices (Trial)'. The local ISC offices are responsible for organizing and coordinating relevant departments of the district procuratorate and police sub-bureau to lawfully conduct investigative supervision and collaborative work, while ensuring shared reporting of law enforcement case handling and investigative supervision data. Based on specific regulations, these ISC offices function as a 'liaison officer', primarily undertaking communication and coordination work between prosecutors and police case handlers.

T District's ISC offices also undertake organizational coordination functions, specifically collecting and transmitting daily work information and convening meetings to enhance prosecutor–police connections. For example, these offices can create lists as needed and regularly collect relevant work data from the police sub-bureau and district procuratorate, including problems discovered during investigative supervision work, and thereby ensure shared access, reporting, and analysis of police law enforcement case handling and prosecutorial case-handling information. In daily work, ISC office staff must properly maintain office work logs, ledgers, tracking supervision forms, clue transfer forms, and information inquiry registration forms, promptly transferring and conveying relevant opinions and needs to prosecutor–police departments. For situations and problems encountered during case

handling, the ISC offices can regularly or as needed request work meetings, joint conferences, and annual meetings.

T District's ISC offices also fulfill supervisory collaboration functions, primarily discovering and transferring clues related to investigative supervision and criminal case-handling problems. For example, the ISC offices can rely on information exchange mechanisms to timely discover supervisory clues through regular data reporting, data inspection, and data comparison, transferring clues to relevant departments based on content. For cases requiring prosecutor–police consultation, the ISC offices should receive, register, and organize coordination between district procuratorate departments through examining evidence materials, hearing case briefings, and case consultations to provide opinions and recommendations on case characterization, evidence collection, and legal application.

As noted in Overview of prosecutor–police interactive mechanism in China section, prosecutors and police have numerous collaborative needs in case transfer and evidence collection. However, meeting these collaborative needs largely depends on each party's actual willingness to cooperate. If one side shows negative attitudes or inadequate performance, this will negatively impact prosecutor–police collaboration effectiveness and hinder achieving collaborative goals. Therefore, T District's ISC offices are assigned supervision functions, specifically tracking and supervising implementation of work requiring cooperation between prosecutors and police. For example, when cases require continued investigation, supplementary investigation, or providing evidence materials needed by courts, the ISC offices should track, guide, and supervise implementation by investigative organs.

Such supervision work encompasses several areas: nonarrest decision cases, nonprosecution cases, detention necessity review cases, and joint supervision cases. For cases involving nonarrest or nonprosecution due to insufficient evidence, the procuratorate, as the legal supervision organ, must continue tracking subsequent developments after cases are returned to police departments. This includes monitoring whether suspects are promptly released or have their coercive measures modified, and whether supplementary investigations are conducted, thereby preventing ineffective supplementary investigations and deterring illegal investigative practices. Additionally, this supervision involves tracking and supervising the implementation of supervisory opinions and prosecutorial recommendations. Meanwhile, effective supervision requires not only that police implement prosecutorial opinions but also that prosecutors respond timely to police needs. For example, when police submit requests for explanations, reconsideration requests, review applications, reinvestigation applications, and recommendation proposals, ISC offices must track, supervise, and provide timely feedback.

T District also assigns the ISC offices consultation and guidance functions. For example, the ISC offices provide timely legal consultation and guidance for difficult and complex problems encountered by the police in handling criminal cases, as well as questions about whether suspects in minor criminal cases need arrest approval requests or prosecution review transfers. However, T District limits this consultation and guidance scope to legal and policy questions and case triage

recommendations. For specific problem consultations during case handling, the ISC offices can only receive, then distribute and provide feedback.

Overall, the 'liaison officer' role differs from embedded prosecutorial office positioning. In terms of establishment goals, both ISC offices and embedded prosecutorial offices share the common objective of addressing insufficient prosecutorial supervision and guidance functions. However, their operational approaches differ substantially. Embedded prosecutorial offices primarily focus on supervising police case filing and investigative activities while providing early intervention guidance, representing a substantive intervention model in investigative cases. For example, the 'Work Regulations for Procuratorate Prosecutor Offices Stationed at Police Departments' (2018) issued by Fangcheng County's Procuratorate stipulates that stationed prosecutor offices must be staffed by deputy chiefs from procuratorate investigative supervision departments plus one additional prosecutor, with personnel required to work at least 1 day per week. These stationed offices can utilize criminal case information-sharing platforms to supervise police case filing and investigative activities, and can actively or upon invitation intervene early in order to guide investigations.

ISC operational model two: 'preliminary review' and 'case handling' approaches

Through our research, we found that ISC offices in some regions primarily engage in substantive case-handling work such as arrest approval and prosecution review.

The Opinions does not explicitly position ISC offices as venues for substantive case handling. However, from the perspective of practical paths toward substantive prosecutor-police collaboration, some regions consider actual case handling an important direction for achieving substantive ISC operations. For example, ISC offices in X County adopt a case-handling participation model where stationed prosecutors primarily handle review work for arrest requests and prosecution cases. Some areas in P City integrate ISC offices into criminal case-handling processes, conducting substantive case-handling work. Under this case participation model, there are two sub-models based on different levels of ISC case involvement: 'preliminary review' and 'case handling'.

The first is the 'preliminary review' model, where ISC offices add a screening procedure to conduct preliminary reviews of cases requiring arrest approval and prosecution transfers. According to the Opinions' requirements, ISC offices can provide timely legal consultation and guidance on whether suspects in minor criminal cases need arrest approval requests or prosecution review transfers. However, some localities prefer conducting substantive reviews on arrest or prosecution transfer decisions. For example, X County's ISC office uses a rotating staffing system. The county procuratorate and police bureau each assign one person to work in the office, with staff rotating every quarter. The ISC offices conduct preliminary case reviews, with police legal officers and stationed prosecutors separately proposing evidence supplementation requirements for cases intended for arrest requests and prosecutions through the ISC platform.

A prosecutor stationed at X County's ISC stated:

'For most cases involving arrest approval requests and prosecution review transfers, after review by police legal officers, they are handed to stationed prosecutors for examination, specifically reviewing whether relevant evidence materials are complete, whether supplementary investigation work is finished, and whether crimes are constituted'. (Interviewee J01, 21 July 2023)

Another model involves stationed prosecutors primarily handling criminal cases within ISC offices. Some areas in P City have ISC offices handle criminal cases. For example, the 'Work Guidelines for Improving Investigative Supervision and Cooperation Mechanisms' in W District requires the district procuratorate and district police bureau to rely on ISC offices to streamline simple case processes, achieving 'integrated' case handling and gradually establishing a comprehensive system including lawyer offices and fast-track courts.

A prosecutor from W District in P City stated:

'W District Procuratorate formed a 14-person simple case fast-track team to handle criminal cases such as dangerous driving and traffic accidents within the ISC offices'. (Interviewee P04, 28 March 2024)

G District in P City similarly handles criminal cases within ISC offices. A prosecutor from this district stated:

'G District Procuratorate stations 6 prosecutors in the ISC offices, establishing a simple case fast-track group operating with one resident prosecutor plus five rotating prosecutors, with stationed personnel totaling nearly one-third of the procuratorate's prosecutors'. (Interviewee P03, 28 March 2024)

Naturally, in these regions, criminal case handling represents the primary ISC office work, but this does not mean ISC offices no longer engage in investigative supervision and collaboration. For example, W District's 'Work Guidelines for Improving Investigative Supervision and Cooperation Mechanisms' requires ISC offices to coordinate district procuratorate criminal prosecution departments in assigning personnel for major complex case opinion hearings and case consultations based on case types and charges, and coordinate supervision of investigative personnel court appearances during trial stages.

As mentioned in Prosecutor and police perspectives on reform innovation section, some local ISC offices conducting case-handling approach have absorbed embedded prosecutorial office practices. Since local prosecutors and police are direct stakeholders in reforms, when they believe reforms align with their interests and expectations, they more actively implement reform tasks; conversely, they adopt relatively passive avoidance measures (Lin and Chen 2020). The Opinions' functional positioning of ISC offices is relatively general, only requiring the acceleration of ISC office establishment and the improvement of investigative supervision and collaboration mechanisms, as well as detailing office workflows and standards, but does not restrict the specific operational models of local ISC offices.

We estimate case handling may better align with local practical needs for two reasons. First, those stationed are qualified prosecutors with full prosecutorial powers rather than assistant

prosecutors, so conducting arrest reviews, prosecution reviews, state prosecutions, and investigative supervision falls within their authorized responsibilities. The Opinions imposes no restrictions on stationed prosecutors handling cases. Second, given current prosecutorial system human resource constraints, stationed prosecutors handling cases in ISC offices can reduce time costs from case material transfers, helping reduce case-handling pressure.

Differences in case types across regions may also lead to variations in prosecutor–police collaborative needs. Regions adopting the ‘case handling’ model choose this model based on local case volumes and types, especially the high volume of minor offenses such as dangerous driving cases, where this model can effectively improve case processing speed. Similarly, regions selecting the ‘preliminary review’ model base this decision on their desire to avoid procedural backflow that would otherwise affect case-handling efficiency. Local procuratorates and police enjoy relative freedom in choosing specific approach to adopt. However, neither the ‘case handling’ nor the ‘preliminary review’ approach appears to align with the positioning of ISC offices, which we will discuss and analyze in subsequent sections.

Further discussion: can ISC offices enhance investigative control effectiveness?

The primary objective of ISC offices is to enhance investigative control effectiveness. However, investigative control effectiveness is a multidimensional concept that cannot be measured solely by successful prosecution rates, but should also consider evidence quality, procedural collaboration efficiency, and social effects. Despite this complexity, the Opinions does provide macrolevel guidance by indicating that ISC offices, as joint platforms established by procuratorates and police, should effectively strengthen bilateral coordination in supervision and case handling, enhance communication, unify understanding, and eliminate disagreements, thereby forming synergies to improve case quality, enhance supervision effectiveness, and boost judicial credibility.

Based on these requirements, we believe that investigative control effectiveness can be examined from at least two key dimensions: investigative effectiveness and investigative legality. This research will evaluate the impact of ISC offices on these dimensions through judicial personnel’s subjective attitudes toward reform, developments in investigation–prosecution collaborative processes, and individual case-handling outcomes.

Investigative effectiveness

Our empirical research demonstrates that ISC office reforms help improve investigative work quality and efficiency. Unlike embedded prosecutorial offices, ISC offices represent collaborative reform rather than unilateral prosecutorial control, generating greater police engagement. Our prosecutor survey shows that 56.25 per cent of prosecutors believe the number of cases returned for supplementary investigation during prosecution review has significantly decreased after ISC office reforms (see Table 4). This reduction is particularly meaningful because cases are typically returned when investigative quality is insufficient. While some practitioners may exploit these procedural mechanisms by returning cases for

Table 4 Prosecutor perspectives on changes in cases returned for supplementary investigation during prosecution review over the past 3 years.

Response	Number	Percentage (%)
Significant increase	4	8.33
Slight increase	4	8.33
Basically unchanged	4	8.33
Slight decrease	9	18.75
Significant decrease	27	56.25

N = 48.

supplementary investigation to ‘borrow’ time between the investigative and prosecutorial review periods and thereby evade performance assessments (Lan and Chen 2012), the fundamental reason for such returns remains deficiencies in case quality and preparation.

Local implementation effects similarly demonstrate that ISC offices help improve investigative quality and efficiency. For example, according to partial case-handling data provided by X County, from 1–30 April 2023, stationed prosecutors in the ISC office reviewed 91 arrest and prosecution cases involving 159 individuals. After preliminary review, 14 cases involving 27 individuals were deemed unnecessary for arrest, with 100 per cent adoption by police. They proposed 71 evidence supplementation recommendations, leading to 30 cases involving 52 individuals being resubmitted for arrest or prosecution after police supplemented evidence. These data show that the mechanism improved efficiency by avoiding unnecessary arrests and enhanced case quality through evidence supplementation guidance.⁴

⁴Similar to the vertical prosecution model in the United States, the Opinions requires improving consultation mechanisms for major and complex cases, whereby police officers handling major and difficult cases may request prosecutors to review evidence materials and provide opinions and suggestions on case characterization, evidence collection, and legal application. These cases require early prosecutor–police collaboration to jointly improve investigation quality. Localities also enumerate specific types of major and complex cases based on their circumstances. For example, the ‘Implementation Opinions on Improving Investigative Supervision and Cooperation Mechanisms between Fujian Provincial Procuratorate and Fujian Provincial Police Department (Trial)’ (2022) includes intentional homicides, crimes endangering national security, sexual crimes against minors, and organized crime within the scope of major complex cases. Of course, these provisions maintain flexibility through catch-all clauses for other major and difficult cases requiring prosecutorial intervention, allowing prosecutors and police to collaborate early based on actual circumstances. ISC offices can play an auxiliary role by coordinating relevant prosecutor–police personnel for case consultations. T District in K City also requires that when encountering major and complex cases, ISC offices should promptly organize prosecutor–police departments to convene case consultation meetings and compile handling guidelines and typical cases for such cases to unify case handling concepts.

ISC offices also facilitate case investigation and fact-finding by strengthening prosecutor–police relations. In a typical case published by the SPP in 2024, Wang XX-A and Wang XX-B conspired with Li XX to extort money through false rape accusations, involving 8 victims and obtaining CNY 87,000. Through the ISC office, police invited prosecutorial guidance. Prosecutors identified the relationships among the three suspects as a critical investigative lead, which proved pivotal when investigation revealed that Li XX and Wang XX-A were not related as claimed. This discovery triggered intensive prosecutor–police collaboration to reassess the case, leading both agencies to recognize potential false accusation crimes and strategically redirect the investigation. The court’s ultimate support for charging both false accusation and extortion offenses validated this collaborative approach.

However, current practical factors may affect ISC office actual effectiveness, negatively impacting investigative effectiveness enhancement. For example, the Opinions fails to provide clear and precise definitions of ISC office and stationed prosecutor roles and functions, potentially leading to excessive prosecutor involvement in investigative activities and confusion between investigative and prosecutorial functions.

First, the Opinions do not clearly specify ISC office roles in criminal proceedings. The Opinions states that ISC offices can actively conduct related investigative supervision and collaborative work based on office personnel configuration and local circumstances. However, specific standards for such ‘related’ work remain undefined. This raises a key question: should ISC offices conduct substantive supervision and guide investigative work, or merely serve as ‘liaison officers’ for supervision and collaboration affairs? That leads to a deeper question: if stationed prosecutors are granted investigative supervision and guidance authority, how should their jurisdictional division with prosecutorial department prosecutors be effectively coordinated? According to Article 8 of the Criminal Procedure Rules for People’s Procuratorates (2019), ‘arrest review, prosecution review, court support for prosecution, case filing supervision, investigative supervision, and trial supervision for the same criminal case should be handled by the same prosecutor or prosecutor team’. Under these circumstances, if stationed prosecutors supervise or intervene early in cases they neither handle nor participate in, this may conflict with the aforementioned judicial interpretation.

In the ‘preliminary review’ model, stationed prosecutors substantially participate in both substantive and procedural case handling. This model reduces procedural backflow by adding a gatekeeping procedure. However, the key issue lies in the degree of stationed prosecutor participation and their role positioning. X County adopted a deep participation approach, conducting substantive reviews of arrest requests and prosecution transfers. The risk is that prosecutors subsequently handling these cases may be influenced by stationed prosecutors’ opinions, preventing objective and fair case handling. Moreover, since stationed prosecutors work physically within police departments, long-term close collaboration may lead to psychological and emotional assimilation, preventing objective and fair case handling.

Second, the Opinions fail to clearly define the scope and authority of problem-solving consultation and guidance. The

Criminal Procedure Law establishes specific prosecutor–police functional divisions, requiring both prosecutors and police to perform duties within legally prescribed functional ranges. When ISC offices conduct problem-solving consultation and guidance work, defining appropriate boundaries is crucial as these boundaries determine both prosecutor–police functional positioning and responsibility allocation during case handling.

Specifically, four problems may exist. First, the definition of ‘difficult and complex problems’ is ambiguous. It is unclear whether such problems constitute general legal issues or involve specific matters like individual case investigative directions and evidence collection. T District in K City only interprets difficult and complex problems as legal policy issues without further detailed rules. If stationed prosecutors cannot accurately understand their role positioning, they may excessively intervene in criminal case investigations, potentially interfering with investigative activities or even encroaching on police investigative authority. Second, stationed prosecutors are drawn from specific prosecutorial departments and their case-handling experience may be limited to certain crime types, making it difficult for them to provide accurate guidance across diverse criminal cases. Third, the authority of ISC office consultation and guidance regarding arrest approval requests and prosecution review transfers remains unclear. When investigators face such consultation and guidance opinions, whether they should adopt them or merely consider them as references remain unspecified in the Opinions. Fourth, the seniority of stationed personnel affects collaborative capacity. The Opinions require procuratorates to assign quota prosecutors (rather than assistant prosecutors) to ISC offices, considering that quota prosecutors have more experience and can provide greater assistance in organizational coordination and problem-solving for investigative and prosecutorial activities. Of course, experience varies among prosecutors, with senior prosecutors having advantages in handling complex cases and evidence evaluation. However, which level of prosecutor seniority to assign depends on specific local prosecutor–police collaborative needs.

Investigative legality

Since China’s procuratorates are granted legal supervision authority to prevent investigative power abuse, one important responsibility of ISC offices involves investigative supervision work. However, whether ISC offices can enhance investigative legality requires further analysis.

According to data released by the SPP, in 2022, national procuratorates conducted case filing and withdrawal supervision of police in 85,000 cases; after supervision, police filed or withdrew 83,000 cases, representing 97.3 per cent of supervised cases. In 2023, national procuratorates conducted case filing and withdrawal supervision of police in 145,000 cases; after supervision, police filed or withdrew 139,000 cases. In 2022, national procuratorates proposed corrections for 201,000 instances of illegal investigative activities, with a 99.8 per cent supervision adoption rate. In 2023, national procuratorates proposed corrections for 526,000 instances of illegal investigative activities, with a 99.9 per cent supervision adoption rate. At least temporally, investigative supervision-related

data has significantly improved following implementation of the ISC mechanism. Notably, such dramatic increases may reflect changes in reporting behavior rather than actual surges in violations. Previous research found that the procuratorates' performance assessments drove data improvements. Local procuratorates, to meet assessment requirements, had to collaborate with police to jointly fulfill assessment indicators without harming police interests. Related statistical data shows that 38.58 per cent of police officers believe investigative supervision measures are implemented to help fulfill procuratorates' internal assessment indicators (Lin 2023).

However, several factors limit ISC office effectiveness in improving investigative legality. First, affected by human resource shortages, ISC offices lack sufficient time for investigative supervision work. Second, police remain resistant to investigative supervision, making it difficult for stationed prosecutors to control investigative activities through supervision.

ISC offices adopt different models in practice, but these models may face similar problems. Through in-depth interviews with prosecutors, we found that regardless of stationing arrangements, prosecutors responsible for ISC offices must handle cases, leaving insufficient time for ISC work. From the perspective of T District's ISC office operations, although the Opinions require a permanent qualified prosecutor model, T District Procuratorate and Police Sub-bureau have not fully implemented these requirements. We interviewed a prosecutor from T District who stated:

'Local requirements mandate a dual-director system for ISC offices, with the district procuratorate and district police sub-bureau each assigning one person as ISC office director, while separately stationing fixed numbers of relatively permanent police officers and prosecutors responsible for daily ISC office work. However, these requirements remain theoretical only, as prosecutors are not permanently stationed at ISC offices. Because ISC offices have prosecutors assigned by the procuratorate's First Prosecutorial Department, recent internal personnel changes reduced the First Prosecutorial Department from 14 to 6 people, making permanent stationing impossible'. (Interviewee J06, 4 June 2024)

ISC offices in P City vary significantly between districts and counties, with some adopting permanent prosecutor models while others cannot achieve permanent prosecutorial stationing. A prosecutor from Y County, P City stated:

'Locally, there is essentially no more 'stationing,' but rather police departments and procuratorates each determine one liaison officer responsible for coordinating their unit's matters and uniformly transferring to the other unit. However, this liaison officer no longer permanently works in a fixed ISC office or at the other unit's office, so there's essentially no 'stationing'. (Interviewee J07, 10 January 2025)

Another prosecutor from P City stated:

'Incorporating summary cases into ISC offices aligns with the direction of substantive ISC office operations. Otherwise, ISC office work easily becomes hollow. Moreover, police should also establish summary case handling teams to connect with procuratorates'. (Interviewee J05, 28 March 2024)

Case-handling pressure actually dominates the prosecutor-police interaction mechanism construction process. The inability of ISC office stationed prosecutors to maintain permanent presence may result from insufficient regional implementation commitment or practical constraints like procuratorate staffing shortages. Several practical factors worsen procuratorate staffing shortages. Some procuratorates must station personnel at multiple police sub-bureaus within their jurisdictions; supervision and collaboration mechanisms are expanding to specialized departments like national security and maritime police; and grassroots prosecutors are often temporarily reassigned to assist higher-level departments, further reducing local staffing.

Some local regulations indicate that ISC office prosecutor stationing is indeed affected by case-handling pressure. For example, the 'Opinions on Promoting Substantive and Standardized Operation of Provincial Investigative Supervision and Cooperation Mechanisms' (2023) issued by Hainan Provincial Procuratorate and Hainan Provincial Police Department requires that procuratorates with 50–80 staff members may adopt 'rotating residence' models, assigning multiple prosecutors in rotation to ensure prosecutorial personnel presence during workdays. Procuratorates with fewer than 50 staff members may adopt 'periodic duty' models, assigning prosecutors to work at least one workday per week after consultation with police departments. Procuratorates establishing multiple ISC offices may adopt 'periodic duty and rotating residence' approaches based on police criminal case filing numbers and other circumstances to ensure normal ISC office operations. 'Full-time residence' personnel should have appropriately reduced case ratios to alleviate case-handling pressure. 'Rotating residence' and 'periodic duty' personnel may have caseloads appropriately reduced based on rotation and duty circumstances. Due to caseload pressures, stationed prosecutors must still manage their ongoing cases, regardless of the stationing method adopted. As a result, ISC office prosecutors focus primary attention on case handling, which limits time available for investigative supervision work.

Another limiting factor is police resistance to investigative supervision. Research indicates that ISC offices face significant challenges when conducting investigative supervision work. Police officers often view supervision as intrusive and show low acceptance of prosecutorial oversight. Meanwhile, many prosecutors are either reluctant to exercise supervisory authority or lack the skills to do so effectively. This mutual resistance and hesitation creates substantial barriers to effective investigative supervision by ISC office prosecutors.

For example, a police officer from X County stated:

'The police system internally already has many supervision and oversight measures. Prosecutor-police relations should emphasize cooperation more. Excessive emphasis on supervision constrains operations. Case quality improvement should rely on prosecutor-police collaborative efforts to jointly solve problems'. (Interviewee G01, 21 July 2023)

A police officer from P City murmured:

'Prosecutorial recommendation letters and investigative activity supervision notices frequently address real problems in investigative case handling. For these, we work hard to explain laws,

reasoning, and supplement evidence. Of course, our local procuratorate and police personal relationships are still good, but they are indeed cautiously ‘annoying’ when handling cases’. (Interviewee G02, 25 December 2024)

The possible reason police perceive prosecutors as overly cautious is that prosecutors set excessively high evidentiary standards, causing some cases to be returned for supplementary investigation or nonprosecution due to evidentiary flaws, which affects police work effectiveness and professional identity. Of course, prosecutors may believe that police hastily submit arrest requests and prosecution transfers, seeking to share or shift responsibility. A prosecutor from S County, R Province stated:

‘Recently, police transferred numerous arrest request cases, but review work for some cases was clearly insufficient. This directly resulted in a 50 per cent non-approval rate for arrests in cases I’m currently handling. Some police officers maintain a ‘request arrest equals exemption from responsibility’ mentality, even if arrests aren’t approved, they can tell victims that cases have entered judicial procedures, shifting responsibility to procuratorates. This practice not only violates the original intent of judicial collaboration but forces us to bear additional procedural review pressure and risk of victim criticism’. (Interviewee P01, 22 May 2025)

Regarding investigative supervision status and methods, a prosecutor from P City stated:

‘Superior procuratorates have assessment requirements for investigative supervision quality and effectiveness for subordinate procuratorates, but some prosecutors actually dare not or are unskilled at supervision. Perhaps relatively tactful methods like opinions and recommendations can make police organs more accepting, rather than immediately resorting to formal disciplinary or legal actions’. (Interviewee P05, 28 March 2024)

Police resistance to investigative supervision may stem from supervision measures negating investigators’ previous work achievements. Additionally, constrained by police organ assessment requirements, investigative supervision is typically viewed as negative evaluation indicators (Chan and Wu 2024), bringing unfavorable assessments to police.

Regarding local investigative supervision data improvements, this may result from prosecutor–police ‘cooperation’. For example, a prosecutor from X County embarrassedly stated:

‘There’s no choice. Prosecutors asking police for investigative supervision data to formally satisfy assessment requirements does indeed exist. For example, prosecutors ask police for cases that police already plan to withdraw, then prosecutors issue case withdrawal supervision notices, which satisfies quantitative assessment requirements for investigative supervision’. (Interviewee P02, 31 October 2023)

Recommendations for improvement

ISC office reforms align with current development trends in China’s prosecutor–police interaction. ISC offices help strengthen prosecutor–police connections and can play a role in promoting investigative effectiveness and legality.

However, ISC offices still face practical challenges that hinder their effectiveness in enhancing investigative control.

Judicial reform effectiveness may be constrained by political, structural, institutional, cognitive, methodological, and organizational factors (Meng 2023). Although prosecutors and police maintain close connections in criminal case handling, they fundamentally operate under a division of responsibilities in China. In ISC reform, organizational coordination direction and effectiveness remain influenced by human resource constraints and differing organizational interests between prosecutors and police.

While ISC offices were established under joint promotion by the SPP and MPS, emphasizing both mutual restraint and cooperation, specific implementation methods and directions are primarily determined locally. Therefore, due to conflicting organizational interests and lack of proper incentive structures, local implementation may remain insufficiently proactive in practice. Organizational resistance to reform is an iron law of institutions. These resistance factors may stem from individual-level factors such as habits, need for security, and economic considerations, as well as organizational-level factors such as structural inertia (Robbins and Judge 2013). Although ISC offices emphasize police participation and initiative more than embedded prosecutorial offices, they still lack adequate incentive and constraint mechanisms during multi-level implementation, remaining significantly affected by local implementation attitudes.

To ensure effective ISC office operations while maintaining appropriate prosecutorial oversight, procuratorates need flexible staffing models that balance resource allocation with supervision integrity. For example, procuratorates can choose multiple approaches including ‘permanent residence’, ‘rotating residence’, and ‘periodic duty’ to alleviate human resource pressure. Procuratorates should timely convey prosecution policies, arrest and prosecution case-handling situations, and distribution of various criminal cases to police through ISC offices, helping police departments understand the overall criminal justice landscape, thereby scientifically allocating police resources, optimizing investigative strategies, and enhancing the precision and effectiveness of crime control.

Regarding prosecutor and police attitudes toward investigative supervision, procuratorates should emphasize investigative supervision quality as the primary incentive factor rather than overemphasizing supervision case quantities, reducing instances of disguised collaborative completion of investigative supervision indicators. Police should objectively treat investigative supervision, focusing on case quality and not treating investigative supervision as negative evaluation indicators. Simultaneously, timely error correction should be encouraged. For illegal investigative activities that implement investigative supervision requirements and are promptly corrected without serious consequences, police assessment departments may appropriately reduce or exempt relevant responsibilities for case-handling officers.

The primary role of ISC offices should be facilitating prosecutor–police coordination and investigative supervision, not performing the case review and approval functions typically handled by police legal affairs departments. ‘Preliminary review’ and ‘case handling’ models may blur investigation

and prosecution boundaries, preventing prosecution from substantively constraining investigations. According to China's basic positioning of prosecutor–police relations, investigative and prosecutorial functions should be distinguished to prevent functional confusion risks from overly close prosecutor–police connections. Therefore, ISC offices should only undertake auxiliary functions such as organizational coordination and cannot directly intervene in criminal case handling.

To address these concerns, ISC offices should limit their problem-solving functions to general legal issues rather than specific investigative directions. We propose an enumeration approach for clarity: (1) Substantively, ISC offices can address identification challenges of new crimes, conflicts in legal interpretation, and evaluation of special evidence; (2) Procedurally, they can handle jurisdictional conflicts for cross-regional crimes and rules for extraction, preservation, and authentication of evidence related to new crimes. Moreover, consultation and guidance should remain purely advisory without replacing or adding case-handling procedures. The 'preliminary review' model, while theoretically improving case quality through additional screening, risks creating investigation–prosecution role confusion by overlapping with police legal affairs functions.

In response to unclear role positioning of ISC offices, the SPP and MPS have formulated work standards for these offices. These standards require substantive and standardized operations, with work priorities focused on auxiliary support for investigative supervision. They explicitly prohibit substituting for arrest approval, prosecution, or investigative functions to prevent excessive prosecutor–police collaboration.

Conclusion

Empirical research reveals that ISC offices, as important vehicles for prosecutor–police collaborative innovation mechanisms, have developed multidimensional operational models in practice.⁵ From a reform effectiveness assessment perspective, ISC office establishment has effectively reduced collaborative barriers between procuratorates and police, with relevant empirical data indicating this mechanism positively promotes criminal investigative quality and compliance.

However, several structural contradictions have emerged during mechanism operations. First, stationed prosecutors' role positioning lacks institutional consensus, with tendencies toward functional boundary ambiguity. Second, structural gaps exist between procuratorate human resource allocation and supervision needs, limiting supervision quality and effectiveness. Third, some police officials resist investigative supervision, objectively creating reform resistance. These deep-seated problems directly lead to issues in judicial practice including investigation–prosecution functional confusion and weakened prosecutorial oversight.

Under the background of promoting trial-centered criminal procedure system reform, China's prosecutor–police interaction models urgently need operational mechanisms compatible with

judicial reform objectives. Given their critical role in connecting investigation and prosecution, prosecutors and police need to focus on promoting substantive ISC office operations. While ISC offices have strengthened cooperation and increased prosecutorial influence over investigations, maintaining prosecutorial independence remains crucial. Future reforms must clearly define ISC office functions to achieve this balance.

This study contributes cross-regional and longitudinal empirical analysis that expands academic understanding of China's ISC reforms while advancing methodological approaches to prosecutor–police interaction research. By deconstructing institutional logic and practical pathways of prosecutor–police interaction mechanisms in the Chinese context, we provide localized samples for comparative law research that may stimulate discussions on how to enhance coordination effectiveness through improved interaction mechanisms.

While our research includes survey data from K City and J Province, interviews with local practitioners, and extensive documentary analysis, the findings may have limited applicability to regions with substantially different socioeconomic conditions or institutional contexts. Future research should expand the geographical scope and include diverse jurisdictional contexts to enhance generalizability of findings on ISC office effectiveness and optimal operational models.

The evolution of China's prosecutor–police interaction mechanisms reflects broader tensions between collaborative efficiency and institutional integrity that characterize criminal justice reforms worldwide. Understanding these dynamics provides valuable insights for both domestic policy development and comparative criminal justice scholarship.

Supplementary material

Supplementary material is available at [Policing](https://doi.org/10.1093/police/paag005/8519249) online.

Conflicts of interest

None declared.

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Data availability

Data are available from the corresponding author upon reasonable request.

Ethical approval and informed consent

All participants provided informed consent prior to participation. The study followed ethical guidelines for social science research, ensuring participant anonymity and confidentiality.

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⁵Although China's acquittal rate is extremely low (Li 2014), discussing prosecutor–police relations remains necessary. This is because acquittal rates may not fully reflect the final disposition of criminal cases, as procuratorates can withdraw prosecutions under certain conditions.

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